

FILE NO.: LTB-L-12345-24

Singh v. Patel

Date Issued: January 15, 2025

Member: J. Thompson

Mock Decision – For Educational and Formatting Purposes Only

ORDER UNDER SECTIONS 69 AND 83

Residential Tenancies Act, 2006 (the “Act”)

Application

1. The Landlord applied for an order to terminate the tenancy and evict the Tenant for non-payment of rent and to recover arrears of rent.
2. The Landlord relied on a Notice to End Tenancy Early for Non-payment of Rent (N4).

Hearing

3. The hearing was conducted by videoconference on January 8, 2025.
4. Both parties attended and gave oral evidence under affirmation.
5. Documentary evidence was filed electronically in advance of the hearing.

Issues

6. The issues before the Board are:
 - a. Whether the Tenant owes arrears of rent;
 - b. Whether the N4 notice complies with the Act;
 - c. Whether relief from eviction should be granted pursuant to section 83 of the Act.

Evidence

Landlord’s Evidence

7. The Landlord testified that the lawful monthly rent is \$1,600.00, payable on the first day of each month.
8. A written tenancy agreement dated March 1, 2022 was entered as Exhibit 1.

9. The Landlord filed a rent ledger (Exhibit 2) detailing rent charges and payments from January 2024 to January 2025.
10. The ledger indicates no rent was received for April, May, or June 2024.
11. A copy of the N4 notice dated May 5, 2024 was filed as Exhibit 3.
12. A certificate of service indicating personal delivery to the Tenant on May 5, 2024 was filed as Exhibit 4.
13. The Landlord testified that no partial payments were made during the period of arrears.

Tenant's Evidence

14. The Tenant testified that she was hospitalized from April 3 to April 18, 2024 due to a serious medical condition.
15. Hospital discharge documentation was filed as Exhibit A.
16. The Tenant filed a physician's letter dated April 22, 2024 confirming recovery restrictions until late May 2024 (Exhibit B).
17. The Tenant testified that as a result of her hospitalization she was unable to work and experienced an interruption of income.
18. Confirmation of an application for Ontario Disability Support Program benefits was filed as Exhibit C.
19. The Tenant produced a proposed repayment budget showing anticipated monthly income and expenses (Exhibit D).
20. Under cross-examination, the Tenant acknowledged she did not immediately inform the Landlord of her hospitalization but stated she was medically incapacitated at the time.

Findings of Fact

21. The Landlord bears the burden of proving the arrears on a balance of probabilities.
22. I find the tenancy agreement and rent ledger reliable and consistent.
23. The Tenant did not dispute the arrears calculation.
24. I find that arrears total \$4,800.00 as of the hearing date.
25. I am satisfied that the N4 notice complies with section 59 of the Act and was properly served.

Section 83 – Relief from Eviction

26. Section 83 requires the Board to consider all the circumstances before issuing an eviction order.
27. The Tenant's medical documentation is detailed and consistent with her testimony.
28. I found the Tenant's evidence to be candid and internally consistent.
29. The Landlord did not present evidence contradicting the medical documents.

30. The Tenant's repayment proposal of \$400.00 per month is supported by the projected income outlined in Exhibit D.
 31. The Landlord expressed concern about delay in full repayment but acknowledged the Tenant's prior good payment history.
 32. I find that the arrears arose due to temporary and unforeseen medical hardship.
 33. Balancing the prejudice to both parties, I find that conditional relief from eviction is appropriate.
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Order

34. The tenancy shall terminate on March 31, 2025 unless the Tenant complies with paragraph 35.
35. The Tenant shall:
 - a. Pay the lawful monthly rent in full and on time as it becomes due; and
 - b. Pay \$400.00 per month toward the arrears beginning February 1, 2025 until the arrears are paid in full.
36. If the Tenant fails to comply with this order, the Landlord may file this order with the Court Enforcement Office (Sheriff) and the eviction may be enforced without further notice to the Tenant.
37. If the Tenant complies with this order, the eviction portion of this order shall be void.

FILE NO.: LTB-L-12346-24

Johnson v. Lee

Date Issued: February 2, 2025

Member: S. Rahman

Mock Decision – For Educational/Formatting Purposes Only

ORDER UNDER SECTIONS 69 AND 83

Residential Tenancies Act, 2006

Application

1. The Landlord applied to terminate the tenancy and evict the Tenant for non-payment of rent and to recover arrears.
 2. The Landlord relied on a Notice to End Tenancy Early for Non-payment of Rent (N4).
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Hearing

3. The hearing was conducted by videoconference on January 28, 2025.
 4. Both parties attended and provided evidence under affirmation.
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Issues

5. The arrears amount;
 6. Validity of the N4;
 7. Whether relief from eviction under section 83 is appropriate.
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Evidence

Landlord's Evidence

8. The Landlord submitted the tenancy agreement (Exhibit 1) confirming rent of \$1,200.00 per month.
9. The rent ledger (Exhibit 2) shows arrears of \$3,200.00 for November 2024 through January 2025.

10. A copy of the N4 dated December 1, 2024 was filed as Exhibit 3.
11. Evidence of email consent to electronic service was submitted as Exhibit 4.

Tenant's Evidence

12. The Tenant testified he was laid off November 10, 2024.
13. A Record of Employment confirming termination was filed as Exhibit A.
14. The Tenant actively sought employment and filed email correspondence with prospective employers (Exhibit B).
15. A signed job offer dated January 20, 2025 commencing February 15, 2025 was filed (Exhibit C).
16. A repayment plan of \$200.00 per month toward arrears was submitted (Exhibit D).
17. Under cross-examination, the Tenant acknowledged prior late payments but confirmed there were no prior Board filings.

Findings

18. I find the arrears are proven in the amount of \$3,200.00.
19. The N4 complies with section 59 and was validly served.
20. The Tenant's testimony regarding temporary loss of employment is credible and supported by documentary evidence.
21. The repayment proposal is reasonable given projected income.

Section 83 Consideration

22. I find that the arrears arose from temporary, involuntary loss of income.
23. Conditional relief is appropriate to balance prejudice between Landlord and Tenant.

Order

24. The tenancy shall terminate May 31, 2025 unless the Tenant:
 - a. Pays ongoing monthly rent; and
 - b. Pays \$200.00 per month toward arrears beginning March 1, 2025.
 25. If the Tenant fails to comply, the Landlord may enforce through the Sheriff without further notice.
 26. If the Tenant complies, the eviction portion is void.
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FILE NO.: LTB-L-12347-24

Ramirez v. Miller

Date Issued: March 9, 2025

Member: C. DeLuca

Mock Decision – For Educational/Formatting Purposes Only

Application

1. Landlord seeks termination for non-payment of rent totaling \$5,100.00.
 2. Tenant seeks relief from eviction citing family emergency and temporary financial hardship.
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Evidence

Landlord

3. Rent ledger (Exhibit 1) confirms arrearage.
4. N4 notice dated February 1, 2025 (Exhibit 2) served properly.

Tenant

5. Tenant admitted non-payment but produced:
 - Airline tickets and travel confirmation for urgent family care (Exhibit A).
 - Sworn statement detailing the circumstances (Exhibit B).
 - Confirmation of rent bank application (Exhibit C).
 6. Tenant testified that municipal funding may cover 75% of arrearage.
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Findings

7. Arrearage established on balance of probabilities.
 8. N4 valid.
 9. Evidence shows arrearage arose from temporary family emergency and unforeseen hardship.
 10. Repayment via rent bank anticipated; good faith demonstrated.
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Section 83

11. Conditional relief is appropriate. Tenant must comply with repayment plan.

Order

12. Termination June 30, 2025 unless Tenant:

- a. Pays ongoing rent; and
- b. Provides proof of rent bank funding by April 30, 2025.

13. Enforcement by Sheriff permitted upon breach; compliance voids eviction.

FILE NO.: LTB-L-12348-24

Chow v. Singh

Date Issued: April 12, 2025

Member: A. McKenzie

Evidence

- Landlord ledger confirms \$2,900.00 arrears (Exhibit 1).
 - Tenant pension statements (Exhibit A) show fixed monthly income.
 - Medical invoices totaling \$1,750 (Exhibit B).
 - Pharmacy receipts confirm medication expenses (Exhibit C).
 - Tenant has a 12-year tenancy with no prior Board applications.
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Findings

- Arrears resulted from unexpected medical costs.
 - Tenant demonstrated good faith and inability to pay due to temporary hardship.
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Section 83

- Tenant's repayment plan of \$100 per month reasonable.
 - Conditional relief granted.
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Order

- Termination July 31, 2025 unless ongoing rent and \$100 monthly arrears paid.
 - Sheriff enforcement upon breach; compliance voids eviction.
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FILE NO.: LTB-L-12349-24

Ahmed v. Roberts

Date Issued: May 19, 2025

Member: P. Gonsalves

Evidence

- Arrears: \$6,000.00 (Exhibit 1).
 - Tenant provided employment offer (Exhibit A) and pay stubs (Exhibit B).
 - Bank statements confirm deposits (Exhibit C).
 - Budget spreadsheet shows capacity to repay.
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Findings

- Arrears proven.
 - Employment and repayment capacity credible.
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Section 83

- Conditional relief appropriate. Repayment at 25% of arrears monthly.
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Order

- Termination August 31, 2025 unless ongoing rent and repayment plan met.
 - Enforcement via Sheriff upon breach.
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FILE NO.: LTB-L-12350-24

Nguyen v. Carter

Date Issued: June 23, 2025

Member: T. Iqbal

Evidence

- Arrears \$4,200.00; \$1,000 partial payment before hearing (Exhibit A).
 - Employer letter confirms temporary reduction in hours (Exhibit B).
 - Updated hours schedule filed (Exhibit C).
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Findings

- Arrears established; good faith payment made.
 - Hardship due to temporary reduction in income.
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Section 83

- Conditional relief granted with repayment \$350/month.
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Order

- Termination September 30, 2025 unless conditions met.
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FILE NO.: LTB-L-12351-24

O'Malley v. Hassan

Date Issued: August 10, 2025

Member: R. Chen

Evidence

- Arrears \$3,750.00; Record of Employment confirms layoff (Exhibit A).
- New employment contract filed (Exhibit B).
- Tenant history shows no prior arrears.

Findings

- Good faith; temporary financial hardship verified.

Section 83

- Repayment plan of \$300/month reasonable.

Order

- Termination December 31, 2025 unless conditions met.
 - Enforcement by Sheriff if breached.
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FILE NO.: LTB-L-12352-24

Markham v. Riley

Date Issued: September 5, 2025

Member: L. Duarte

Evidence

- Arrears \$2,100.00 (Exhibit 1).
 - Tenant photos of bathroom leak (Exhibit A).
 - Landlord repair invoices and completion photos (Exhibit L1).
 - Disability income statements confirm temporary interruption.
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Findings

- Repairs completed timely; no abatement warranted.
 - Hardship genuine; temporary interruption of income verified.
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Section 83

- Conditional relief granted; \$50/month arrears repayment.
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Order

- Termination January 15, 2026 unless repayment conditions met.
 - Sheriff enforcement upon breach.
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FILE NO.: LTB-L-12353-24

Wright v. Silva

Date Issued: October 14, 2025

Member: M. Alvarez

Evidence

- Arrears \$4,900.00.
 - Tenant photos of mould (Exhibit A).
 - Landlord remediation invoices and clearance letter (Exhibit B).
 - Rent bank confirmation filed.
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Findings

- No abatement warranted; repairs documented.
 - Conditional relief appropriate.
-

Section 83

- Tenant must provide rent bank confirmation by Dec 15, 2025.
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Order

- Termination February 28, 2026 unless compliance.
 - Sheriff enforcement upon breach.
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FILE NO.: LTB-L-12354-24

Desai v. Brown

Date Issued: December 2, 2025

Member: K. O'Connor

Evidence

- Arrears \$3,600.00.
 - Stove replacement receipt (Exhibit A).
 - Entry notice emails (Exhibit B).
 - Subsidy provider letter confirms temporary interruption (Exhibit C).
 - Tenant 5-year clean payment history.
-

Findings

- Section 82: No financial loss proven; repairs completed.
 - Section 83: Hardship due to subsidy interruption verified; temporary and genuine.
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Order

- Termination March 31, 2026 unless ongoing rent and \$250/month arrears paid.
- Sheriff enforcement permitted upon breach.